

Court No. - 19

Case :- WRIT - C No. - 11006 of 2015

Petitioner :- Anoop Goyal

Respondent :- State Of U.P. & 3 Others

Counsel for Petitioner :- Vidya Kant Shukla

Counsel for Respondent :- C.S.C.,Dr. S.K. Yadav

Hon'ble Shri Narayan Shukla,J.

Heard Vidya Kant Shukla, learned counsel for the petitioner as well as Dr. S.K. Yadav, learned Advocate appears for the respondent No.2,3,4.

The petitioner has assailed the order dated 26 December 2014 passed by the permanent Lok Adalat, whereby the petitioner's complaint No. 21 of 2014 has been dismissed. The petitioner has purchased plot No. K 50 situated at UPSID, Panki Industrial Area, Site No.III, Panki, Kanpur Nagar by way of auction. The sale deed was registered on 13 June 2012 for purchase of plot. Petitioner applied for electricity connection on 16 January 2013. Pursuant to the petitioner's application the electricity officer inspected the plot and pointed out to the petitioner that there is already arrear of Rs.12,51,660/- of the electricity bill for the same very plot. Therefore, without payment of the aforesaid amount a fresh electricity connection could not be given.

Learned counsel for the petitioner submits that under the terms of sale deed such a liability was not disclosed nor was provided any such condition that the petitioner had to pay the arrears the permanent Lok Adalat examined the matter. In light of the provisions of para 4.3F of the U.P. Electricity Supply Code-2005, it has been observed by the Court that it was the duty of the purchaser to search out the liability of the purchased house.

The similar question has already been dealt with by Division Bench of this Court in the case of **Chandra Prakash Gupta Vs. State of U.P. in Writ C No. 4606 of 2014**. In light of the provisions of para 4 of the U.P. Electricity Supply Code 2005 it has been held that the liability of payment of electricity dues is fastened with the persons who is seeking a fresh electricity connection.

Under these circumstances I do not find any error in the order impugned. In the result the writ petition is dismissed.

Order Date :- 24.2.2015/A. K. Singh

(Shri Narayan Shukla,J)